

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

Filed: _____

DEREK THOMPSON,

INDEX NO. _____

Plaintiff,

Plaintiff designates Queens
County as the place of trial.

-against-

S U M M O N S

P.O. JASON McCARRON (Badge unknown), P.O. JOSE
HOLGUIN (Badge 13566), P.O. "JOHN" BORST (Badge 29742),
actual first name unknown, THE NEW YORK CITY POLICE
DEPARTMENT and THE CITY OF NEW YORK,

The basis of venue is
the County in which the
cause of action arose.

Defendants.

To the above named Defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to
serve a copy of your answer on the plaintiff's attorneys within 20 days after the service of this
summons, exclusive of the day of service of this summons, or within 30 days after service of
this summons is complete if this summons is not personally delivered to you within the State
of New York.

In case of your failure to answer this summons, a judgment by default will be taken
against you for the relief demanded in the complaint, together with the costs of this action.

Dated: New York, New York
June 16, 2014

ASHER & ASSOCIATES, P.C.
Attorneys for Plaintiff
111 John Street
Fourteenth Floor
New York, New York 10038
(212) 227-5000

THE CITY OF NEW YORK
100 Church Street-4th Floor
New York, New York 10007

NEW YORK CITY POLICE DEPARTMENT

1 Police Plaza

Room 300

New York, New York 10038

JASON MCCARRON

105 Precinct

92-08 222nd Street

Queens Village, New York

JOSE HOLGUIN

Transit Bureau - District 23

222 Beach 116th Street

Rockaway Park, New York 11694

"JOHN" BORST

Transit Bureau - District 23

222 Beach 116th Street

Rockaway Park, New York 11694

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

DEREK THOMPSON,

Plaintiff,

-against-

P.O. JASON McCARRON (Badge unknown), P.O. JOSE
HOLGUIN (Badge 13566), P.O. "JOHN" BORST (Badge 29742),
actual first name unknown, THE NEW YORK CITY POLICE
DEPARTMENT and THE CITY OF NEW YORK,

Defendants.

INDEX NO.

VERIFIED COMPLAINT

Plaintiff, by his attorneys, ASHER & ASSOCIATES, P.C., as and for his Verified
Complaint, respectfully alleges, upon information and belief:

1. On March 16, 2013, plaintiff was and still is a resident of the County of Kings, City and State of New York.
2. On March 16, 2013, defendant, THE CITY OF NEW YORK (hereinafter "CITY") was and still is a domestic municipal corporation duly organized and existing under and by virtue of the Laws of the State of New York.
3. On March 16, 2013, defendant, NEW YORK CITY POLICE DEPARTMENT (hereinafter "NYPD") was and still is a domestic municipal agency duly organized and existing under and by virtue of the Laws of the State of New York.
4. On or about March 16, 2013, the defendant P.O. JASON McCARRON (Badge unknown), was a citizen of the United States and the State of New York and was employed by the NYPD as a police officer.
5. Upon information and belief, Officer JASON McCARRON (Badge unknown),

was assigned to the Transit Bureau District 23 of the NYPD at the time of the occurrences alleged in this complaint. He is being sued in both his individual and official capacity.

6. On or about March 16, 2013, the defendant P.O. JOSE HOLGUIN (Badge 13566), was a citizen of the United States and the State of New York and was employed by the NYPD as a police officer.

7. Upon information and belief, officer JOSE HOLGUIN (Badge 13566), was assigned to the Transit Bureau District 23 of the NYPD at the time of the occurrences alleged in this complaint. He is being sued in both his individual and official capacity.

8. On or about March 16, 2013, the defendant P.O. "JOHN" BORST (Badge 29742), actual first name unknown, was a citizen of the United States and the State of New York and was employed by the NYPD as a police officer.

9. Upon information and belief, Officer P.O. "JOHN" BORST (Badge 29742), actual first name unknown, was assigned to the Transit Bureau District 23 of the NYPD at the time of the occurrences alleged in this complaint. He is being sued in both his individual and official capacity.

10. Notice of the plaintiff's claim and intention to sue and of the time when and the place where the injuries alleged herein were incurred and sustained, was duly served by said plaintiff upon the defendants, CITY and NYPD within ninety (90) days of the causes of action herein accrued, all as required by the General Municipal Law, Section 50-e.

11. At least thirty (30) days have elapsed since the demand or claim upon which this action is founded was served upon the aforementioned defendants for adjustment and the defendants have neglected and/or refused to make an adjustment or payment thereon for said

period of thirty (30) days after such presentation.

12. Plaintiff duly submitted to the statutory hearing concerning the justness of his claim.

13. Plaintiff complied with all applicable Sections of the General Municipal Law which are conditions precedent to bringing this action against the defendants CITY and NYPD.

14. This action has been commenced within one year and ninety days after the cause of action of plaintiff accrued.

15. On March 16, 2013, the defendant NYPD was and is a department or agency of defendant CITY that was and is responsible for the appointment, training, supervision, promotion and discipline of the police officers of the NYPD, including the individually named defendants herein.

16. On March 16, 2013, the defendant NYPD had the duty to provide, supervise and control the city streets and protect the well-being and safety of the public.

17. On March 16, 2013, the defendants CITY and NYPD employed the warrant officers, police officers, jailers, wardens, magistrates, court attendants, clerks, district attorney and his assistants, drivers, and others hereinafter mentioned in this complaint.

18. Upon information and belief, the defendants CITY and NYPD owned the various courthouses, jails and their equipment, police stations, and the vans used to transport prisoners, all hereinafter mentioned in this complaint.

19. Upon information and belief, the defendants CITY and NYPD maintained the various courthouses, jails and their equipment, police stations, and the vans used to transport prisoners, all hereinafter mentioned in this complaint.

20. Upon information and belief, the defendants CITY and NYPD controlled the various courthouses, jails and their equipment, police stations, and the vans used to transport prisoners, all hereinafter mentioned in this complaint.

AS AND FOR A FIRST CAUSE OF ACTION

21. On March 16, 2013, the plaintiff DEREK THOMPSON was lawfully in the 67th Street Subway Station of the A Train, Far Rockaway, New York.

22. On March 16, 2013, within the aforementioned subway station, the plaintiff was stopped and forcibly arrested.

23. On March 16, 2013, within the aforementioned subway station, the plaintiff was subjected to both verbal and physical abuse by multiple members of the NYPD, including the individually named defendants herein.

24. Based upon information and belief, the officers, including the individually named defendants herein, had no legal justification for their actions.

25. Plaintiff DEREK THOMPSON was caused to suffer severe personal injuries.

26. At all relevant times and in all their actions described herein, the defendants, including the individually named defendants herein, were acting under the color of the statutes, ordinances, regulations, policies, customs and usages of the NYPD and CITY, pursuant to their authority as employees, servants and agents of the NYPD, within the scope of employment and incidental to their otherwise lawful duties and functions as agents, servants and employees.

27. At all relevant times, the defendant CITY was responsible for the actions of its police officers, and more particularly, the individually named defendant police officers.

28. The conduct and injuries complained of herein ensued without any negligent or

culpable conduct on the part of the plaintiff DEREK THOMPSON.

29. To date, as a direct result and proximate result of all defendants' actions, plaintiff has suffered physical assault and battery, and continues to suffer physical and emotional pain, permanent physical damage, serious mental anguish, psychological and emotional distress and various other physical and psychological injuries.

30. Due to the foregoing, plaintiff DEREK THOMPSON is entitled to damages

AS AND FOR A SECOND CAUSE OF ACTION

31. Plaintiff DEREK THOMPSON repeats, realleges and incorporates in full paragraphs the contents of Paragraphs 1 through 29, inclusively with the same force and effect as if set for the fully and at length set forth herein.

32. As a result of the aforementioned actions of members of the NYPD, including the individually named defendants herein, plaintiff DEREK THOMPSON was placed in apprehension of imminent or offensive contact and was concerned that the defendants were about to cause an offensive or harmful bodily contact.

33. Due to the foregoing, plaintiff DEREK THOMPSON is entitled to damages

AS AND FOR A THIRD CAUSE OF ACTION

34. Plaintiff DEREK THOMPSON repeats, realleges and incorporates in full paragraphs the contents of Paragraphs 1 through 32, inclusively with the same force and effect as if set for the fully and at length set forth herein.

35. Such conduct breached the protections provided by the New York State Constitution Article I, §§ 6, 11, and 12.

36. As a result of all foregoing conduct and acts of the defendants with respect to the

arrest and subsequent events as alleged above, Plaintiff suffered serious physical, mental and emotional injuries as aforesaid, requiring medical and therapeutic treatment and follow-up care. He also suffered serious reputational and economic injuries.

37. The acts and conduct described above deprived Plaintiff of his rights:

- a. To freedom of speech and association;
- b. To be free from false arrest and imprisonment without probable cause by police officers acting under color of law;
- c. To be free from malicious prosecution by police officers acting under color of law;
- d. To be free from abuse of process by police officers acting under color of law;
- e. To be entitled to the free exercise of due process without wrongful restraint by police officers acting under color of law;
- f. To be free of unreasonable seizure by police officers acting under color of law;
- g. To not have excessive force used against him by police officers acting under color of law; and
- h. To not have summary punishment imposed upon him by police officers acting under color of law.

38. Due to the foregoing, plaintiff is entitled to damages.

AS AND FOR A FOURTH CAUSE OF ACTION

39 Plaintiff repeats, reiterates, realleges and reaffirms each and every allegation contained in paragraphs 1 through 37, inclusively with the same force and effect as if fully and

at length set forth herein.

40. Defendants were further negligent in failing to exercise the care in the performance of police duties as a reasonably prudent and careful police officers would have used under similar circumstances.

41. That these defendants were further negligent in that the CITY and NYPD were negligent in the training and instruction of its police and corrections officers by not exercising care in instructing them as to their department, proper police procedure, behavior and conduct as police officers and representatives of the CITY.

42. At all times relevant herein, the acts complained of herein are the direct and proximate result of the failure of the CITY and NYPD to properly select, train, supervise and discipline its employees and servants, and in particular the individual defendants in accordance with the statutes, ordinances, regulations, customs and usages of the defendant CITY and of the State of New York and of the United States of America. Defendant CITY is liable for any torts or liability of the NYPD, its police officers, and its agents and employees under a municipal custom or policy.

43. As a result of the foregoing, plaintiff was rendered sick, sore, lame, and disabled, suffered injuries both internal and external, pain and mental anguish; was confined to his bed and home for a lengthy period of time; was compelled to seek medical care and attention and upon information and belief, will in the future be compelled to seek medical care and attention; was prevented from his usual vocation, avocation and activities and upon information and belief will in the future be disabled from his following usual vocation, avocation and activities and will thereby suffer a diminution of enjoyment of life and loss of income.

44. All defendants named herein are derivatively liable for the acts of each other.
45. This action comes within one or more of the exceptions set forth in CPLR 1602.
46. Due to the foregoing, plaintiff is entitled to damages.

AS AND FOR A FIFTH CAUSE OF ACTION

47. Plaintiff DEREK THOMPSON repeats, realleges and incorporates in full paragraphs the contents of Paragraphs 1 through 45, inclusively with the same force and effect as if fully and at length set forth herein.

48. At all relevant times and in all their actions described herein, the defendants were acting under the color of the statutes, ordinances, regulations, policies, customs and usages of the NYPD and CITY, pursuant to their authority as employees, servants and agents of the NYPD, within the scope of employment and incidental to their otherwise lawful duties and functions as agents, servants and employees.

49. At all relevant times, the defendant CITY was responsible for the training of its police officers, and more particularly, defendants OFFICERS "JOHN/JANE DOES" the unknown police officers whose identity plaintiff intends to discover.

50. At all relevant times, the defendant CITY was negligent in the hiring, training, supervision, discipline, retention and promotion of the agents, servants and employees of the NYPD, including the individually named defendants herein.

51. At all times mentioned herein, the defendant CITY knew or should have known of the bias, bad judgment, abusive and violent tendencies and other unlawful propensities of the officers involved in the violation of the plaintiff's civil rights, the assault and battery and/or negligence causing physical injury to the plaintiff, the use of excessive force

in effectuating the arrest of the plaintiff, the intimidation and intentional and/or negligent infliction of emotional distress of plaintiff DEREK THOMPSON.

52. As a result of the foregoing, plaintiff was rendered sick, sore, lame, and disabled, suffered injuries both internal and external, pain and mental anguish; was confined to his bed and home for a lengthy period of time; was compelled to seek medical care and attention and

upon information and belief, will in the future be compelled to seek medical care and attention; was prevented from his usual vocation, avocation and activities and upon information and belief will in the future be disabled from his following usual vocation, avocation and activities and will thereby suffer a diminution of enjoyment of life and loss of income.

53. All defendants named herein are derivatively liable for the acts of each other.

54. This action comes within one or more of the exceptions set forth in CPLR 1602.

55. Due to the foregoing, plaintiff is entitled to damages.

AS AND FOR A SIXTH CAUSE OF ACTION

56. Plaintiff DEREK THOMPSON repeats, realleges and incorporates in full paragraphs the contents of Paragraphs 1 through 54, inclusively with the same force and effect as if fully and at length set forth herein.

57. This action arises under the United States Constitution, particularly under the provisions of the First, Fourth, Fifth, Eighth and Fourteenth Amendments to the Constitution of the United States, and under Federal law, particularly Title 42 of the United State Code, Section 1983.

58. Each and all of the acts of the defendants were done by the defendants, each of them, not as individuals, but under the color and pretense of the statutes, ordinances, regulations,

customs and usages of the City and State of New York, County of the Bronx, and under the authority of their office as police officers for such city and county.

59. The acts and conduct described above deprived Plaintiff of his rights:

- a. To freedom of speech and association;
- b. To be free from false arrest and imprisonment without probable cause by police officers acting under color of law;
- c. To be free from malicious prosecution by police officers acting under color of law;
- d. To be free from abuse of process by police officers acting under color of law;
- e. To the free exercise of due process without wrongful restraint by police officers acting under color of law;
- f. To be free of unreasonable seizure by police officers acting under color of law;
- g. To not have excessive force used against him by police officers acting under color of law; and
- h. To not have summary punishment imposed upon him by police officers acting under color of law;

all in violation of the First, Fourth, Fifth, Eighth and Fourteenth Amendments to the United States Constitution and 42 U.S.C. §1983.

60. The acts, conduct and behavior of these defendants and each of them were performed knowingly, intentionally and maliciously, by reason of which plaintiff is entitled to an award of punitive damages.

61. As a result of the conduct of Defendants, Plaintiff suffered serious physical injury

causing Plaintiff to experience pain and suffering, future pain and suffering, disabling physical symptoms and economic injuries. All of said injuries may be permanent and all have caused diminution in the quality of Plaintiff's life.

62. As a result of the conduct of Defendants, Plaintiff has been forced to incur, past, present and future medical expenses and was and continues to be deprived of his privacy and liberty, has been adversely affected in his employment and in his ordinary life's pursuits and, in addition, was emotionally traumatized and was caused, permitted and allowed to fear for his physical safety, suffer humiliation, embarrassment, anxiety and ridicule and suffer all the disabling mental and emotional symptoms of such injuries, all of which have caused diminution in the quality of Plaintiff's life and may be permanent.

63. In addition, the acts of the Defendants were so egregious and reprehensible and were performed in a manner which so violates the law and which were so outrageous that it constitutes conduct that no civilized society should be required to tolerate and, in addition to all the damages inflicted to the Plaintiff and, in addition to all of the measures of relief to which Plaintiff may properly be entitled herein, Defendants should also be required to pay punitive damages to punish them for their reprehensible conduct and to deter them from such conduct in the future, and as an example to others similarly situated.

64. Due to the foregoing, plaintiff is entitled to damages.

AS AND FOR AN SEVENTH CAUSE OF ACTION

65. Plaintiff DEREK THOMPSON repeats, realleges and incorporates in full paragraphs the contents of Paragraphs 1 through 63, inclusively with the same force and effect as if fully and at length set forth herein.

66. At all times relevant herein, the aforesaid acts undertaken by the defendants and complained of by plaintiff were so outrageous as to shock the conscience of the court.

67. As a result of the foregoing, plaintiffs suffered serious permanent emotional, mental, physical, reputational and economic injuries.

68. Due to the foregoing, plaintiff is entitled to damages.

WHEREFORE, the plaintiffs demand:

a. judgment awarding damages on the FIRST CAUSE OF ACTION, in an amount exceeding the monetary jurisdictional limits of all lower Courts which would otherwise have jurisdiction;

b. judgment awarding damages on the SECOND CAUSE OF ACTION, in an amount exceeding the monetary jurisdictional limits of all lower Courts which would otherwise have jurisdiction;

c. judgment awarding damages on the THIRD CAUSE OF ACTION, in an amount exceeding the monetary jurisdictional limits of all lower Courts which would otherwise have jurisdiction;

d. judgment awarding damages on the FOURTH CAUSE OF ACTION, in an amount exceeding the monetary jurisdictional limits of all lower Courts which would otherwise have jurisdiction;

e. judgment awarding damages on the FIFTH CAUSE OF ACTION, in an amount exceeding the monetary jurisdictional limits of all lower Courts which would otherwise have jurisdiction;

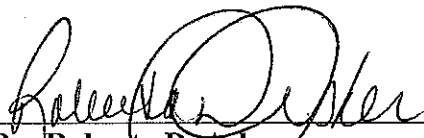
f. judgment awarding damages on the SIXTH CAUSE OF ACTION, in an

amount exceeding the monetary jurisdictional limits of all lower Courts which would otherwise have jurisdiction;

g. judgment awarding damages on the SEVENTH CAUSE OF ACTION, in an amount exceeding the monetary jurisdictional limits of all lower Courts which would otherwise have jurisdiction;

h. interest, the costs and disbursements of this action, together with such other and further relief as to this Court seems just and proper.

Dated: New York, New York
June 16, 2014


By: **Roberta D. Asher**
ASHER & ASSOCIATES, P.C.
Attorneys for Plaintiff
111 John Street
Fourteenth Floor
New York, New York 10038
(212) 227-5000

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

DEREK THOMPSON,

Plaintiff,

~~against~~

INDEX NO.

**ATTORNEY'S
VERIFICATION**

P.O. JASON McCARRON (Badge unknown), P.O. JOSE
HOLGUIN (Badge 13566), P.O. "JOHN" BORST (Badge 29742),
actual first name unknown, THE NEW YORK CITY POLICE
DEPARTMENT and THE CITY OF NEW YORK,

Defendants.

Roberta D. Asher, an attorney duly admitted to practice law in the State of New York,
makes the following affirmation under the penalty of perjury:

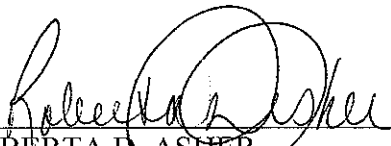
I am of the firm of ASHER & ASSOCIATES, P.C., the attorneys of record for the
plaintiff.

I have read the foregoing Complaint and know the contents thereof; the same is true to
my own knowledge except as to the matters therein stated to be alleged on information and
belief and that as to those matters, I believe them to be true.

This verification is made by affirmant and not by plaintiff because he is not in the
County of New York, which is the County where your affirmant maintains offices.

The grounds of affirmant's belief as to all matters not stated upon affirmant's
knowledge are correspondence had with the said plaintiff, information contained in the said
plaintiff's file, which is in affirmant's possession, and other pertinent data relating thereto.

Dated: New York, New York
June 16, 2014


ROBERTA D. ASHER

Index No.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

DEREK THOMPSON,

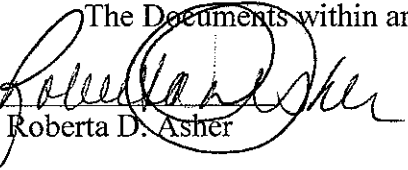
Plaintiff,

-against-

P.O. JASON McCARRON (Badge unknown), P.O. JOSE HOLGUIN (Badge 13566), P.O.
"JOHN" BORST (Badge 29742), actual first name unknown, THE NEW YORK CITY POLICE
DEPARTMENT and THE CITY OF NEW YORK,

Defendants.

SUMMONS and VERIFIED COMPLAINT

The Documents within are hereby certified pursuant to 22 N.Y.C.R.R. 130-1.1-a:
By: 
Roberta D. Asher

ASHER & ASSOCIATES, P.C.

Attorneys for Plaintiff

111 John Street

Fourteenth Floor

New York, New York 10038

(212) 227-5000

PLEASE TAKE NOTICE

NOTICE OF

ENTRY

that the within is a (certified) true copy of a duly entered in the office of the Clerk
of the

within named Court on , 2014.

NOTICE OF

SETTLEMENT

that an of which the within is a true copy will be presented to the Hon. one of
the

of the within named Court, at , New York, on , 2014, at 9:30
A.M.

Dated: